

File No.: EXP202212905

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 28/02/2023; the complaint is directed against ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R., with NIF ***NIF.1 (hereinafter, the complained party), and the reasons on which it is based are as follows: that the neighborhood association and the consultancy that manages it have sent all its members a letter convening an Extraordinary General Meeting where their personal data (name, surname, apartment, letter, and amounts owed) appear; the complainant states that he does not belong to and has never belonged to the aforementioned association, in which no neighbor is an owner, as all are tenants and the property belongs to the Ministry of Defense through its delegation in INVED (Institute of Housing, Infrastructure, and Defense Equipment).

SECOND: In accordance with the preliminary mechanism for the admission of complaints filed with the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), which consists of forwarding them to the data protection delegates designated by the controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R. and to CONSULTORÍA CAMPOLONGO, S.L., for them to analyze it and respond within one month.

THIRD: After analyzing the documents provided and the concurrent circumstances, no rational indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection were found, therefore, in accordance with the provisions of Article 65.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights, on 15/02/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the complaint. The resolution was notified to the complainant on 16/02/2023, as evidenced in the file.

FOURTH: On 28/02/2023, the complained party filed an optional appeal for reconsideration through the AEPD's Electronic Registry against the resolution issued, expressing its disagreement with the contested resolution, requesting that the initial complaint be admitted for processing.

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FIFTH: On 28/07/2023, the appeal filed was forwarded to the complained party in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to make allegations and present the documents and evidence they deemed appropriate, which was verified by a response letter dated 13/08/2023 and 17/08/2023.

SIXTH: On 06/09/2023, once the appropriate verifications were carried out following the documentation and allegations submitted after the inadmissibility resolution of the initially filed complaint, it was resolved to uphold the appeal for reconsideration filed against the resolution issued on 15/04/2021.

SEVENTH: On 22/11/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 6.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5.a) of the GDPR.

EIGHTH: Once the initiation agreement was notified, on 11/12/2023, the complained party submitted a written statement of allegations, reiterating those already made in previous writings and asserting that

neither the duty of confidentiality under Article 5 of the LOPDGDD nor any other principles governing data protection are violated by the publication of the call for the General Meeting, stating the existence of a debt of one of those co-owners in the manner it was done, as ultimately this specification of the amount owed is legally protected and constitutes a matter of interest for such Community.

NINTH: On 02/09/2024, a period for the practice of evidence was initiated, agreeing to the following:

- To consider the complaint filed by the complainant and its documentation, the documents obtained and generated by the Inspection Services as reproduced for evidentiary purposes.
- To consider the allegations to the initiation agreement presented by the complained party and the documentation provided as reproduced for evidentiary purposes.
- To request from the complained party:

To prove the status of a member of the ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R. of the complainant.

To prove the status of a member of the Board of Directors and acceptance of the position of Secretary of the Association in the capacity of Secretary of the ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R. of the complainant.

After the established deadline, the complained party did not respond to the evidence practiced.

TENTH: On 21/10/2024, a Proposal for Resolution was issued stating that the complained party should be sanctioned for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of €1,000 (one thousand euros).

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The proposal was notified on 22/10/2024 without the respondent, after the legally established deadline, submitting any written allegations. From the actions taken in this procedure, the following have been established:

PROVEN FACTS

FIRST. On 28/02/2023, a document from the complainant was received at the AEPD in which it is stated that the respondent, as well as the advisory service managing the Community, has sent a notice to all its members for an Extraordinary General Meeting, listing their personal data as a debtor (name, surname, apartment, letter, and amounts owed); it indicates that the complainant does not belong to and has never belonged to the mentioned association, a community where no neighbor is an owner, as all are tenants, with the property belonging to the Ministry of Defense through INVIED.

SECOND. There is a letter from the Subdelegation of Defense in Pontevedra dated 19/12/2016, addressed to the representative of the R.R.R. housing, Subject: informing about housing occupation, which states that "On December 9, the complainant has been rehoused in apartment 6°C of that block, which I communicate for the appropriate effects and particularly regarding the expenses that may affect us in the Community of users that they manage."

THIRD. A notice for an Extraordinary General Meeting for users of the R.R.R. NEIGHBORS' ASSOCIATION has been submitted, containing a list of debtors among whom the complainant is listed with their name and surname, apartment number, and debt.

FOURTH. A Resolution from the Ministry of Justice, Interior, and Local Administration of the Xunta de Galicia dated 23/11/2004 has been submitted, by which the Statutes of the R.R.R. neighborhood association are made public and registered.

FIFTH. There is a letter from the Subdelegation of Defense in Pontevedra dated 07/05/2018, addressed to the complainant, Subject: response to a request, which states that:

"In response to the request sent to this institute, in which you express the doubts raised regarding the billing of your Community of Users, I inform you that your obligations would be to pay the so-called recoverable expenses, that is, the supplies, services, and individualized consumptions or those that can be measured by meter or, failing that, by prorating based on the apartment in question, in accordance with the current statute of INVIED (RD 1080/2017, of December 19).

In this case, the responsibilities acquired as a result of the agreements adopted by that Community of

Users have created payment obligations to an administrator as if they were Communities of Owners, lacking the powers that they have.

Therefore, it is necessary to recall O.M. 15/1995, of January 30, which regulates the representation bodies of users of military housing, in which the figure of the Representative of the users before the Institute is created and which states in its fourth section that “the agreements that the Representatives and users may take regarding expenses or income for the administration of common elements that are not the responsibility of the Institute, general services of the users, and unauthorized expenses of the buildings shall not be the responsibility of the institute.

For all these reasons, in the opinion of this Subdirectorate, you will have to agree with your community of users on the amount to be paid for cleaning the common areas and gas, not assuming that of the Administrator, without this Institute being able to intervene in its collection as it does not affect any type of expense.”

SIXTH. In a letter dated 23/02/2023, the same previous body indicated that:

“(…)

Furthermore, you are informed that the conditions to be the holder of military housing are those established in Royal Decree 1080/2017, of December 19, which approves the Statute of the autonomous agency Institute of Housing, Infrastructure, and Equipment of Defense.”

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Unfulfilled obligation: infringement of Article 6.1 of the GDPR

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(…)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

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f) impose an administrative fine pursuant to Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(…)”

Article 5 of the GDPR, Principles relating to processing, establishes that:

“1. Personal data shall be:

f) processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’);

(…)”

Furthermore, Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Moreover, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of compliance with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for taking steps at the request of the data subject prior to entering into a contract.”

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On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

1. The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the affected party which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the controller is subject, to protect the vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

In the present case, the facts claimed according to statements from the complainant have materialized in the sending by the complained party to its associates of a Call for an Extraordinary General Meeting

including a list of debtors among whom is the complainant, containing their personal data (name, surname, apartment, letter, and debt), through the consultancy that manages the neighborhood association, and that he “does not belong to said association and has never given permission... for his name to be mentioned in the letters of the association. Nor has he given permission for his data to be used nor does he know of any circumstance or data regarding himself” and that the neighbors are not.

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owners but tenants of the Ministry of Defense, which is the true owner of the same, managed through INVIED.

The claiming party has stated, both in the claim document and in subsequent writings, that they do not belong to said association and that they have never given permission to it or to its administrator "Consultoría Campolongo" to use their data, nor any circumstance or condition of any kind that refers to them.

However, the responding party maintains, on the contrary, that the claiming party is part of the aforementioned association by virtue of their status as a tenant of the community, in accordance with the provisions established in its Statutes.

It is true that Article 1, section 2, of the Statutes of the Association states:

“(…)

2. The association shall be governed by these Statutes, by Organic Law 1/2002 of March 22, regulating the right of associations, and by the rest of the existing legislation applicable to associations.”

Article 5 of the Statutes establishes:

“The aims of the association shall be the management and administration, without profit motive, of the common services of the housing in which they are located.

The profits obtained from any concept shall be exclusively allocated to the fulfillment of these aims, and may not be distributed among the members or other natural or legal persons with a profit interest.”

Article 6 of the Statutes establishes:

“All natural persons with full capacity to act may be members of the Association.

The status of a member is acquired at the time of signing the founding act and the signing of the housing occupation contract, being obliged to accept these Statutes and to pay the corresponding fees proportionally, which shall be deposited before the first ten days of the month in the account designated by the Association.”

Article 7 of the Statutes establishes:

“Within the Association, the following classes of members may exist:

- A) Founders, those persons who subscribed to the founding act
- B) Numeraries, those persons who joined after the subscription of the Founding Act.
- C) Honorary members, those persons who, in the opinion of the General Assembly, significantly assist in the development of the aims of the Association.”

Article 8 of the Statutes establishes:

“The status of a member is lost when:

- A) The status of tenant is no longer held.
- B) By the death of the natural person.”

However, it is no less true that Organic Law 1/2002, of March 22, regulating the Right of Association, establishes in its Article 1, Object and scope of...

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application, in its section 4: “Excluded from the scope of application of this Law are communities of

property and owners and entities governed by the provisions relating to partnership contracts, cooperatives, and mutual societies, as well as temporary business unions and economic interest groupings.”

And in its article 2, Content and principles, section 3: “No one may be compelled to establish an association, to join it, or to remain within it, nor to declare their membership in a legally constituted association (the underlined portions correspond to the AEPD).

As previously noted, the claiming party has repeatedly stated that they are neither a member nor part of the Association; during the evidentiary period, the Association was requested to prove the status of member and secretary of the Claimant's Neighborhood Association (the respondent had stated that they had held that position), but no response was obtained.

Furthermore, there is a response provided by the Subdelegation of Defense in Pontevedra dated 07/05/2018, to the claiming party who had raised a question regarding the community expenses, in which it states: “In response to the request sent to this institute, in which you express the doubts raised in the billing of your Community of Users, I inform you that your obligations would be to pay the so-called recoverable expenses, that is, the supplies, services, and individualized consumptions or those that can be measured by a meter or, failing that, by prorating based on the dwelling in question, in accordance with the current statute of the INVIED (RD 1080/2017, of December 19).

In this case, the responsibilities acquired as a result of the agreements adopted by that Community of Users have created payment obligations to an administrator as if they were Communities of Owners, lacking the powers that they possess.

Therefore, it is necessary to recall O.M. 15/1995, of January 30, which regulates the representation bodies of users of military housing, in which the figure of the Representative of the users before the Institute is created and which states in its fourth section that “the agreements that may be made by the Representatives and the users concerning expenses or income for the administration of common elements that are not the responsibility of the Institute, general services of the users, and unauthorized expenses of the buildings shall not be the responsibility of the institute.”

For all of the above, regardless of the amount of the debt of the claiming party, what seems evident is that the channel chosen to disclose the debtor status of the same is not appropriate, conflicting with the regulations on personal data protection, violating article 6.1 of the GDPR for lacking any legal basis for the processing of the claiming party's data.

Moreover, considering the arguments made by the Subdelegation of Defense in the letter of 07/05/2018, since the claiming party is not part of the Association, the administration expenses would not be an obligation for them to assume, and it would be their responsibility to pay the so-called “recoverable expenses, that is, the supplies, services, and individualized consumptions or those that can be measured by a meter or, failing that, by prorating based on the dwelling in question.”

Therefore, it is considered that the conduct of the respondent violates the principle of lawfulness enshrined in article 6.1 of the GDPR, classified in article 83.5 a) of the GDPR.

III

Classification of the infringement of article 6.1 of the GDPR

The infringement attributed to the respondent is classified in article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9” is subject to sanction, in accordance with section 5 of the aforementioned article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its article 71, Infringements, states that: “Acts and behaviors referred to in sections 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its article 72, it considers for the purposes of prescription that they are: “Infringements considered very serious:

1. According to what is established in article 83.5 of Regulation (EU) 2016/679, those that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

b) The processing of personal data without any of the conditions for lawfulness of processing established in article 6 of Regulation (EU) 2016/679 being met.

(...)"

V

Sanction for infringement of article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in articles 83.1 and 83.2 of the GDPR must be observed, which state:

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"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement."

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- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, results in the imposition of an administrative fine of €1,000 (one thousand euros).

VI

Adoption of Measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are listed in Article 58.2, paragraphs a) to j).

Since the infringement has been confirmed, it is appropriate to require the responsible party to adopt adequate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the responsible party or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it is deemed appropriate to order the respondent to adjust the processing activities subject to this procedure to the applicable regulations within six months from the finality of this resolution. This agreement outlines the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. However, in this case, the following measure is indicated to be adopted: the implementation of technical and organizational measures that ensure compliance with the principle of lawfulness in accordance with the provisions of Article 6.1 of the GDPR.

It is noted that failure to comply with the order imposed by this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R. with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1,000 (one thousand euros).

SECOND: TO ORDER ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within six months from the finality of this resolution, to prove compliance with the measures that ensure adherence to the provisions established in Article 6.1 of the GDPR.

THIRD: TO NOTIFY this resolution to ASOCIACIÓN COMUNIDAD DE VECINOS R.R.R.

FOURTH: This resolution will be executable once the period for filing the optional appeal for

reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes executable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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